

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

Index No.:
Date Purchased:

-----X
JAYSON ALBERTORIO,

Plaintiff,

-against-

**CITY OF NEW YORK and P.O. CHRISTOPHER
BRINKLEY,**

Defendants.
-----X

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the plaintiff's attorney within 20 days after service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
December 21, 2015

Defendants' Addresses:

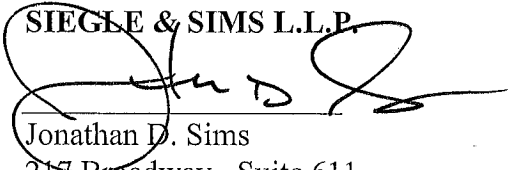
CITY OF NEW YORK
Corporation Counsel
100 Church Street
New York, NY 10007

P.O. CHRISTOPHER BRINKLEY
c/o N.Y.P.D. 7th Precinct
19 ½ Pitt Street
New York, NY 10002

Yours, etc.

By:

SIEGLE & SIMS L.L.P.


Jonathan D. Sims
217 Broadway - Suite 611
New York, NY 10007
(212) 406-0110

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

-----X
JAYSON ALBERTORIO,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

**CITY OF NEW YORK and P.O. CHRISTOPHER
BRINKLEY,**

Defendants.
-----X

To the above named Defendants:

Plaintiff, JAYSON ALBERTORIO complaining of the defendants CITY OF NEW YORK ("CITY") and Police Officer CHRISTOPHER BRINKLEY, shield # 8168 ("BRINKLEY") herein, by and through his attorneys SIEGLE & SIMS L.L.P., alleges the following upon information and belief:

1. At all times herein mentioned, defendant CITY was and is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.

2. At all times herein mentioned, defendant BRINKLEY was and is a natural person who was employed by the New York City Police Department and was acting during the course of and in furtherance of his employment therewith.

3. On or about October 21, 2015 and October 28, 2015, before the commencement of this action, Notices of Claim on behalf of the plaintiff, JAYSON ALBERTORIO were served in writing, sworn to by or on behalf of claimant/plaintiff, by delivering same by personal service upon CITY, which said Notices of Claim set forth the name and post office address of claimant and claimant's attorneys, the notice of claim, the time when, the place where, and the manner in which the claims arose and the items of damages or injuries claimed to have been sustained as far

as then practicable.

4. Said Notices of Claim were presented and delivered to CITY within ninety (90) days after the claims herein sued upon arose and before the commencement of this action.

5. On December 18, 2015, defendant CITY orally examined plaintiff JAYSON ALBERTORIO and had an opportunity to physically examine JAYSON ALBERTORIO.

6. This action was commenced within one year and ninety days after the causes of action herein arose and thirty (30) days have elapsed since the service of these claims or such claims were presented, and CITY has failed and refused to make an adjustment or payment of said claim.

7. On August 15, 2015, at approximately 11:45 p.m., plaintiff was lawfully present inside of an establishment known as "Hair of the Dog," located at 168 Orchard Street, in the County, City and State of New York.

8. On that date and at that time, defendant BRINKLEY and other members of the New York City Police Department arrested plaintiff JAYSON ALBERTORIO, and charged him with Criminal Sale of a Controlled Substance in the Third Degree.

9. Plaintiff JAYSON ALBERTORIO had committed no crime, and there was no probable cause to arrest him.

10. Plaintiff JAYSON ALBERTORIO was prosecuted in the Criminal Court of the City of New York, New York County. On or about October 28, 2015 the New York County District Attorney's Office moved to dismiss the criminal case against plaintiff.

AS AND FOR A FIRST CAUSE OF ACTION
FALSE ARREST AND IMPRISONMENT

11. Plaintiff repeats and reiterates the allegations contained in paragraphs 1 through 10.

12. On August 15, 2015, defendants their agents, servants and/or employees, arrested plaintiff JAYSON ALBERTORIO, handcuffed him, took him into custody, and confined him.

13. Plaintiff JAYSON ALBERTORIO was conscious of the arrest and confinement.

14. Plaintiff JAYSON ALBERTORIO did not consent to the confinement.

15. The arrest and confinement of plaintiff JAYSON ALBERTORIO was not otherwise privileged.

16. The arrest and confinement of plaintiff JAYSON ALBERTORIO was without probable cause.

17. As a result, plaintiff JAYSON ALBERTORIO suffered physical and mental injuries.

18. As a result thereof, plaintiff JAYSON ALBERTORIO has been damaged in an amount exceeding the jurisdictional limits of all lower courts that might otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION
ASSAULT

19. Plaintiff repeats and reiterates the allegations contained in paragraphs 1 through 18.

20. The conduct of defendants, their agents, servants and/or employees detailed herein, including the handcuffing and arrest of plaintiff, was done with the intent of placing plaintiff in fear of imminent harmful and offensive conduct and did in fact place plaintiff in fear of imminent harmful and offensive conduct.

21. As a result, plaintiff JAYSON ALBERTORIO suffered physical and mental injuries.

22. As a result thereof, plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts that might otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION
BATTERY

23. Plaintiff repeats and reiterates the allegations contained in paragraphs 1 through 22.

24. The conduct of defendants, their agents, servants and/or employees detailed herein, including the handcuffing and arrest of plaintiff, was intentional.

25. Plaintiff did not consent to the intentional touching of his body and person.

26. Such conduct by the defendants, their agents, servants and/or employees towards plaintiff constituted offensive bodily contact.

27. As a result, plaintiff suffered physical and mental injuries.

28. As a result thereof, plaintiff has been damaged in an amount which exceeds the jurisdiction of all lower courts that might otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION
MALICIOUS PROSECUTION

29. Plaintiff repeats and reiterates the allegations contained in paragraphs 1 through 28.

30. Defendants, their agents, servants and/or employees initiated a prosecution against plaintiff while having no probable cause to believe that plaintiff committed any crimes.

31. Defendants, their agents, servants and/or employees acted maliciously in initiating said prosecution against plaintiff.

32. The prosecution against plaintiff terminated in his favor.

33. As a result, plaintiff suffered physical and mental injuries.

34. As a result thereof, plaintiff has been damaged in an amount which exceeds the jurisdiction of all lower courts that might otherwise have jurisdiction.

**CUSTOMS AND PRACTICES OF DEFENDANT CITY OF
NEW YORK WHICH LED TO THE ASSAULT, BATTERY,
FALSE ARREST AND IMPRISONMENT, MALICIOUS
PROSECUTION, AND DENIAL OF DUE PROCESS
RIGHTS OF PLAINTIFF**

35. Defendant CITY has customs and practices that it employs which caused and/or contributed to plaintiff's false arrest and imprisonment, assault, battery, malicious prosecution and denial of due process.

36. It is the custom and/or practice of defendant CITY, its agents, servants and/or employees, to routinely seize individuals, without sufficient and legal probable cause.

37. Defendant CITY, its agents, servants and/or employees, due to a lack of training and supervision, fail to train and/or improperly train its employees in assessing the sufficiency of probable cause to seize an individual.

38. Defendant CITY, its agents, servants, and/or employees, due to a lack of training and supervision, routinely engage in a custom or practice of making arrests without sufficient and legal probable cause and routinely maliciously prosecute individuals, including in drug cases where they are required to meet a quota.

39. Defendant CITY, its agents, servants and/or employees fails to train and/or improperly trains its employees in recognizing probable cause sufficient to seize and individual suspected of a crime.

**AS AND FOR A FIFTH CAUSE OF ACTION
CIVIL RIGHTS PURSUANT TO THE FOURTH AMENDMENT
(FALSE ARREST AND IMPRISONMENT)**

40. Plaintiff repeats and reiterates the allegations contained in paragraphs 1 through 39.

41. Defendants, their agents, servants and/or employees conduct in arresting plaintiff without probable cause was in violation of the rights guaranteed plaintiff pursuant to the Fourth

Amendment of the United States Constitution.

42. As set forth above, such conduct was performed under color of state law.

43. As set forth above, such improper conduct was a result of a custom or practice of defendant CITY in its improper training, instruction and/or supervision by defendant CITY of its agents, servants and/or employees.

44. As a result of its conduct, defendants violated plaintiff's civil rights and is liable to plaintiff pursuant to 42 U.S.C. §1983.

45. As a result, plaintiff suffered physical and mental injuries.

46. As a result thereof, plaintiff has been damaged in an amount which exceeds the jurisdiction of all lower courts that might otherwise have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION
CIVIL RIGHTS PURSUANT TO THE FOURTH AMENDMENT
(MALICIOUS PROSECUTION)

47. Plaintiff repeats and reiterates the allegations contained in paragraphs 1 through 46.

48. As set forth above, defendants, their agents, servants and/or employees, under color of state law, commenced a criminal prosecution against plaintiff.

49. As set forth above, the prosecution ended in plaintiff's favor.

50. As set forth above, the prosecution of plaintiff was without probable cause.

51. As set forth above, defendants their agents, servants and/or employees maliciously initiated the prosecution.

52. As set forth above, such conduct was a result of the customs and practices of defendant CITY.

53. As set forth above, as a result of the prosecution, plaintiff suffered a deprivation of liberty pursuant to the Fourth Amendment.

54. As a result of its conduct, defendants violated plaintiff's civil rights and is liable to plaintiff pursuant to 42 U.S.C. §1983.

55. As a result, plaintiff suffered physical and mental injuries.

56. As a result thereof, plaintiff has been damaged in an amount which exceeds the jurisdiction of all lower courts that might otherwise have jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION
CIVIL RIGHTS PURSUANT TO FIFTH & FOURTEENTH AMENDMENTS
(DUE PROCESS)

57. JAYSON ALBERTORIO repeats and reiterates the allegations contained in paragraphs 1 through 56.

58. DEFENDANTS, their agents, servants and/or employees conduct and actions toward JAYSON ALBERTORIO detailed herein, including the false arrest and malicious prosecution of JAYSON ALBERTORIO were in violation of the rights guaranteed DULA pursuant to the Fifth and Fourteenth Amendments of the United States Constitution.

59. DEFENDANTS their agents, servants and/or employees conduct and actions toward plaintiff deprived plaintiff JAYSON ALBERTORIO of liberty without due process of law.

60. The conduct and acts of the DEFENDANTS were performed under the color of state law.

61. As a result of DEFENDANTS conduct, JAYSON ALBERTORIO's civil rights were violated and DEFENDANTS are liable to plaintiff pursuant to 42 U.S.C. §1983.

62. As a result, plaintiff JAYSON ALBERTORIO suffered physical and mental injuries, as well as loss of property.

63. As a result thereof, plaintiff JAYSON ALBERTORIO has been damaged in an amount which exceeds the jurisdiction of all lower courts which might otherwise have

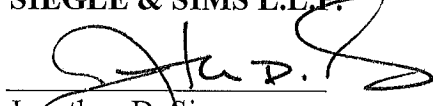
jurisdiction.

WHEREFORE, plaintiff JAYSON ALBERTORIO demands judgment against defendants CITY OF NEW YORK and Police Officer BRINKLEY in a sum in excess of the jurisdiction of all lower courts which might otherwise have jurisdiction for each cause of action alleged, together with the costs and disbursements of this action, including punitive damages and attorneys fees.

Dated: New York, New York
December 21, 2015

Yours, etc.

SIEGLE & SIMS L.L.P.

By: 

Jonathan D. Sims
217 Broadway - Suite 611
New York, NY 10007
(212) 406-0110

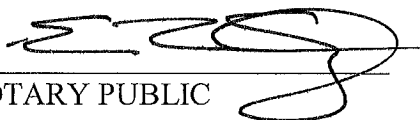
VERIFICATION

STATE OF NEW YORK)
)ss.:
COUNTY OF NEW YORK)

JAYSON ALBERTORIO, being duly sworn, deposes and says: Deponent has read the foregoing VERIFIED COMPLAINT and knows the contents thereof to be true and the same is true to Deponent's own knowledge except as to those matters therein stated to be alleged upon information and belief, and as to those matters Deponent believes them to be true.


JAYSON ALBERTORIO

Sworn to before me this
18th day of December, 2015



NOTARY PUBLIC

